

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS BOARD
OF THE STATE OF IOWA**

IN THE MATTER OF EYSHA KHAN, LMSW RESPONDENT	CASE NO.: 23-0113, 21-0345 DIAL NO.: 26DBBH0001 SETTLEMENT AGREEMENT AND FINAL ORDER
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COMES NOW the Iowa Behavioral Health Professionals Board (“Board”) and Eysha Khan (“Respondent”), pursuant to Iowa Code sections 17A.10(2), 272C.3(4), and Iowa Administrative Code rule 481—506.35, enter into this Settlement Agreement and Final Order (“Settlement Agreement”).

1. **Iowa License.** Respondent was issued Iowa social work license number 109173 on June 30, 2021. Respondent’s social work license will next expire on December 31, 2026.
2. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 147, 154C, and 272C.

A. STIPULATIONS

3. **Practice Setting:** Respondent is an Iowa licensed masters-level social worker who practiced social work in Mason City, Iowa, during the period relevant to these allegations.
4. **Statement of Charges:** On May 27, 2025, the Iowa Board of Behavioral Health Professionals found probable cause to file this Notice of Hearing and Statement of Charges for violation of Iowa Administrative Code rules 645—283.2(13)(a)(2) and 645—283.2(5)(a).
5. **Allegations:** On or about March 10, 2023, the Board received a complaint detailing that Respondent had unmanaged personal mental health issues, which had affected her practice as a social worker. The complaint alleged that Respondent had a pattern of over-diagnosing

dissociative identity disorder. Subsequent investigation revealed Respondent failed to timely submit completed patient evaluations.

B. SETTLEMENT AGREEMENT

6. Respondent acknowledges that the allegations stated above, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Settlement Agreement.

7. To resolve this matter without proceeding to hearing, Respondent agrees to the conditions outlined in section C of this Agreement.

8. In entering this Settlement Agreement, Respondent acknowledges the following:

a. This Settlement Agreement is subject to the approval of the Board and will have no force or effect if it is not accepted by the Board.

b. Counsel for the State will present this Settlement Agreement to the Board *ex parte*.

c. I have the right to be represented by counsel in this matter.

d. I understand I have an opportunity to be heard and to contest the allegations against me in a formal hearing before the Board and that, by waiving the formal hearing, I waive my right to challenge the allegations against me and all attendant rights, including the right to seek judicial review of the Board's actions.

e. I waive my ability to review the investigative file in this case.

f. I understand this Settlement Agreement will be part of my permanent licensure file and may be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

g. I am voluntarily entering into this Settlement Agreement.

h. Failure to comply with the provisions of this Settlement Agreement shall be grounds for further disciplinary action pursuant to Iowa Code § 272C.3(2)(a).

- i. I understand the Board is required to report this Settlement Agreement National Practitioner Databank.
 - j. I understand I am responsible for all expenses incurred to comply with the conditions and requirements of this Settlement Agreement.
9. Respondent shall submit a copy of this Settlement Agreement to all licensing boards where Respondent holds a license, whether active or not, within **THIRTY days** of the date of the Board approval of this Settlement Agreement.
10. This Settlement Agreement constitutes discipline against Respondent pursuant to and in accordance with Iowa Administrative Code rule 481—506.35 and is the final agency action in a contested case.
11. Failure to comply with the provisions of this Settlement Agreement shall be grounds for further disciplinary action pursuant to Iowa Code section 272C.3(2)(a).
12. This Settlement Agreement shall not preclude the Board from taking additional action against Respondent should Respondent violate laws, rules, or standards of practice administered by the Board in the future.
13. This Settlement Agreement becomes a public record available for inspection and copying upon execution in accordance with the requirements of Iowa Code Chapters 17A, 22, and 272C.
14. This Settlement Agreement is subject to approval of the Board. If the Board fails to approve this agreement, it shall be of no force or effect to either party.
15. The Board's approval of this Settlement Agreement shall constitute a **Final Order** of the Board.

C. FINAL ORDER

WHEREFORE, the terms of this Settlement Agreement are agreed to by the Iowa Behavioral Health Professionals Board and the Respondent. **IT IS THEREFORE ORDERED** Respondent shall complete the requirements below:

EDUCATION REQUIRED. Respondent shall complete five (5) hours board-approved continuing education in area of mental wellness and substance abuse education for social workers. Respondent shall also complete three (3) hours of board-approved continuing education in the area of dissociative identity disorder and three (3) hours of board-approved continuing education in the area of mental health diagnosis. The course shall be completed within 90 days of this Order unless an alternate timeline is agreed upon by the Executive Officer of the Board. Respondent shall obtain prior approval of the courses from the Board and shall submit proof of completion of the course to the Board upon completion.

PROBATION AND BOARD MONITORING. Respondent is hereby placed on **PROBATION** and required to enter the Board monitoring program for a period of **TWENTY FOUR (24) MONTHS**, subject to the following terms and conditions:

a. **Practice Monitoring Program:** Within ten (10) days of this Order, Respondent shall establish a Monitoring Program with Marvin Firch, Monitoring Coordinator/Case Manager, 6200 Park Avenue Suite 100, Des Moines, Iowa 50321, who may be reached by phone at 515-281-5525 or email at marvin.firch@dia.iowa.gov. The Practice Monitoring Program shall have the following conditions:

- i. Respondent shall submit for Board approval the name and CV of one or more Iowa licensed social workers to serve as a practice monitor subject to the terms and conditions of this Agreement.

- ii. The Board shall provide a copy of all Board orders relating to this matter to the practice monitor.
- iii. The practice monitor shall provide a written statement indicating that they have read and understand this Order and agrees to serve under the terms of this Order.
- iv. During each quarter, the practice monitor shall review at least ten (10) of Respondent's cases from each of Respondent's practice settings. The practice monitor shall perform a records review and quality assurance process with the following concerns in mind: mental wellness, substance abuse, and proper diagnostic practice.
- v. The practice monitor and Respondent shall check-in weekly (virtually, telephonically, or in-person) and shall meet in-person as needed to discuss any areas of concern described above.
- vi. Respondent and the practice monitor shall engage in a quality assurance process to ensure that Respondent fully conforms to the acceptable and prevailing standard of care in the practice of social work in Iowa.
- vii. The practice monitor shall inform the Board immediately if there is evidence of improper practice or a violation of the terms of this Order.
- viii. The practice monitor may be asked to appear before the Board in-person, or by telephone or video conferencing. Such appearances shall be subject to the waiver provisions of Iowa Administrative Code rule 481—503.7.
- ix. The practice monitor shall inform the Board immediately if there is evidence of professional incompetency, improper diagnosis, mental health

or substance abuse concerns, or any violation of the terms of this Order or the laws and rules governing the practice of social work in Iowa.

- x. Respondent shall ensure that the practice monitor submits quarterly reports to the Board not later than January 20th, April 20th, July 20th, and October 20th of each year of this Order. The quarterly reports shall set forth the practice monitor's conclusions and observations regarding Respondent's practice, any recommendations the monitor has made to Respondent during the relevant quarter, and an opinion whether Respondent has met the acceptable and prevailing standard of care during the reporting period.

b. **Quarterly Reports:** Respondent shall file sworn quarterly reports attesting to his compliance with all the terms and conditions of this Order. The reports shall be filed not later than January 20th, April 20th, July 20th, and October 20th of each year of Respondent's probation.

c. **Board Appearances:** Respondent shall make an appearance before the Board upon request. Respondent shall be given written notice of the date, time and location for the appearances. Such appearances shall be subject to the waiver provisions of Iowa Administrative Code rule 481—503.7.

d. **No Solo Practice—No Supervision.** During the period of probation, Respondent shall not practice independently and shall not supervise other practitioners. Respondent may not apply for her LISW until her probation is complete.

e. **Absence of Practice Monitor—Prohibition of Practice:** Respondent agrees not to practice under Respondent's Iowa social work license unless a Board approved practice monitor is actively engaged with Respondent pursuant to the terms of this

Agreement. In the event a practice monitor is unable to continue to serve in that role, Respondent must take the appropriate and immediate efforts to notify the Board and secure a new Board approved practice monitor. If no practice monitor is in place, Respondent must discontinue the practice of social work in Iowa until a new practice monitor has been approved by the Board. This does not apply to situations where the Practice Monitor(s) is unavailable for short durations, such as vacations.

f. **Board Approval of Termination:** Termination of probation is subject to approval of the Board upon the Board's finding that Respondent has complied with the terms of this Order to the Board's satisfaction.

CIVIL PENALTY. Respondent shall pay a civil penalty in the amount of **three-hundred and fifty dollars (\$350.00)**. The civil penalty shall be paid within **thirty (30) days** of this Order. The civil penalty shall be payable to the Treasurer of Iowa, shall be mailed to the executive director of the Board, and shall be deposited into the State General Fund. The civil penalty may be paid pursuant to an installment plan established with the Board.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by **EYSHA KHAN** this 8th day of August, 2025.


Eysha Khan (Aug 8, 2025 15:57:04 EDT)
By: EYSHA KHAN, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **BOARD** on this 2nd day of September, 2025.

Aaron L Culley, L I SW

Aaron Culley, Chair

Iowa Board of Behavioral Health Professionals